HOPEWELL MUNHAMO RUKURE
versus
GRACE RUKURE (nee KADENHE)
and
REGISTRAR OF DEEDS

HIGH COURT OF ZIMBABWE
MAXWELL J
Harare; 17 November 2025 and 2 March 2026

Chamber Application for Reinstatement of Matter

S. Ushewokunze, for the Applicant
B.M. Mudewe, for the 1st Respondent
No appearance for the 2nd Respondent

MAXWELL J:

The order sought by the Applicant in this matter is couched in the following terms:

> "1. The Application under case number HCHF 2670/24 be and is hereby reinstated;
> 2. the further prosecution of case number HCHF 2670/24 shall be in terms of the rules of the court with time limits applicable to the further process being reckoned from the date of this judgment. and
> 3. costs shall be in the cause in case number HCHF 2670/24."

Applicant stated that he married the first Respondent on the 6th of December 1986 under the then Marriage Act [*Chapter 37*] which is now the Marriages Act [*Chapter 5:17*]. Sometime in September 2024 he filed an application for revocation of a donation he made to the first Respondent. The donation was of an undivided half share in an immovable property known as number 15 Kurrichanne Way, Mandara, Harare (the property). On the 25th of March 2025, the Registrar notified him that the application under HCHF 2670/24 was deemed abandoned and was therefore dismissed. He is therefore seeking reinstatement of that matter.

Applicant stated that when the matter was deemed abandoned, he was only left with filing the answering affidavit and heads of argument after which the matter would be ready for set down. He further stated that these outstanding pleadings are now ready for filing in the event that reinstatement is granted. He stated that the non-compliance with the time lines was due to a challenge in securing the documents to prove his case and also lack of finance to pay for legal services.

In response to the application, first Respondent raised a point *in limine* that the application is fatally defective as it does not identify the law or rule under which it is made. On the merits, she stated that the period of delay is inordinate. She stated that she filed her notice of opposition on 20 September 2024. On the 12th of November 2024 her Legal Practitioners wrote to Applicant's Legal Practitioners challenging them to either prosecute the matter or withdraw it and pay wasted costs. They indicated that if no action was taken within seven days an application for dismissal for want of prosecution would be filed. The letter did not provoke any action from the Applicant. On the 23rd of January 2025 the Registrar of this court sent a letter requesting Applicant to attend to filing subsequent pleadings. This followed a case management order issued on the 16th of January 2025 giving the Applicant 30 days within which to take all necessary steps to ensure the matter is finalized. First Respondent pointed out that Applicant did not act until the matter was dismissed by the Registrar. He did not give an explanation as to why he did not comply with the letter from the Registrar reminding him of the need to file outstanding pleadings. Neither did he explain why he did not comply with the Case Management Order. She disputed that it would take six months to make verifications on factual allegations that she had raised in the notice of opposition.

First Respondent submitted that Applicant had no prospects of success as he had not proved the donation. She pointed out that the Deed of Donation was not attached and the property in question is subject to matrimonial summons that are pending in this court. First Respondent argued that Applicant did not acquire the property in question alone and that it was acquired through proceeds of a property that they jointly owned. She argued that Applicant fraudulently registered the property in his name and the donation was to safeguard first Respondent's rights in the property. She stated that she contributed directly and indirectly to the acquisition of the property and the building materials.

THE *POINT IN LIMINE*

First Respondent argued that the application is fatally defective as it does not identify the law or rule under which it is made. The Supreme Court held that the failure to state the rule of law in terms of which an application is made does not non-suit a party. See *EMA & Anor* v *Ange*l *Hill Mining CO* (*Pvt) Ltd & Ors* HH 706/21. I do not find merit in this preliminary point and I dismiss it.

EXPLANATION FOR THE DELAY.

Applicant simply stated that the following as reasons for delay.

1. The Respondent raised factual allegations and attached proof of payments she alleges to have made towards the construction of the house. I had to do certain verifications so that I could make a comprehensive response since the house was constructed years ago and I lost some of the information due to passage of time.

Applicant does not elaborate what the verifications entailed. He did not specify in detail what took so long, especially with the submission that he had lost some of the information. He did not go further to say he was trying to recover the lost information, and how he was doing that. It is trite that an applicant for condonation must be candid and honest with the court. See *Friendship* v *Cargo Carriers Limited* & *Anor* SC 1/13. Applicant just made a sweeping statement which does not give the court an understanding of what he was doing.

2. When the first Respondent shut me out of the property, she took most of the documentary evidence about how I constructed the property. I had to make do with what I have.

Applicant does not state when he was shut out of the property. It is therefore not possible to ascertain if this affected his ability to comply with the timelines in the proceedings. Again he was not candid with the court. Without an indication of when Applicant was shut out of the property, it is not possible to relate the decision "to make do with what he had" to the failure to file the outstanding pleadings timeously.

Applicant did not give an explanation of why there was no response to the letter from Respondent's Legal Practitioners requesting that the matter either be prosecuted or be withdrawn. The letter is dates 12 November 2024. The Notice of Opposition had been filed on 20 September 2024. There was also no explanation of why the Case Management Order dated 16 January 2025 was not complied with. Again there is no explanation of why the letter from the Registrar dated 23 January 2025 did not result in action from him.

The period from 20 September 2024 up to March 2025 was not explained in detail. Applicant only gave sweeping statements. It is trite that where there is a delay, every minute, hour, day, week, month or year must be fully explained. Applicant's explanation must not have unexplained gaps. The Applicant's explanation for the delay is therefore insufficient.

3. *Delays in mobilizing and putting attorneys in funds to continue with the application. I am currently unemployed.*

Applicant did not file this application as a self-actor. Legal Practitioners filed it on his behalf. Applicant did not explain how he mobilized funds and how he eventually managed to put his attorneys in funds to continue with the application. Applicant did not state that his Legal Practitioners had renounced agency. The financial dilemma was not conveyed to the Respondent. Neither was an extension of time sought. Rule 7 (a) of SI 202/2021 provides:

> "7. Departure from rules
> The court or a judge may, in relation to any particular case before it or him or her, as the case may be.
> a) Direct authorize or condone a departure from any provision of these rules, including an extension of any period specified therein, where it he or she, as the case may be, is satisfied that the departure is required in the interest of justice".(underlining for emphasis)

Applicant ought to have sought an extension of time to comply with the rules, rather than raise the issue of poverty *ex post facto.* The Applicant did not act in a way that prevented the conclusion that the in-action was abandonment of the matter. The inference to be drawn from his actions is that he knowingly and deliberately refrained from filing the answering affidavit, heads of argument and setting down the matter. The lack of resources argument is therefore just an excuse and a mere cover for dilatoriness. In addition, there is no supporting affidavit from any of his Legal Practitioners to explain the cause of the delay. Mr Ushewokunze submitted from the bar that applicant is of no fixed abode and is confined to the rural area. Applicant did not give that as a reason for the delay. I find that the explanation for the delay is not satisfactory.

PROSPECTS OF SUCCESS

Applicant argued that he enjoys prospects of success as he donated *stante matrimonio* and has decided to revoke the donation. First Respondent argued that the property in question is *res litigiosa* as divorce summons were filed. It was argued for the Respondent

that the property in question was acquired through proceeds jointly owned. Respondent further argued that the 50% Applicant alleges he donated to her is rightfully hers.

First Respondent also submitted that the Applicant failed to file or attach the Deed of Donation and that failure is fatal. The General Law Amendment Act [*Chapter 8:07*] provides in s10:

> "No contract of donation shall be invalid solely by reason of the fact that it is not registered or notarially executed."

The failure to attach a Deed of Donation is therefore not fatal to the application.

It was also argued for the first Respondent that the donation was remuneratory and therefore cannot be revoked. The case of *Taylo*r v *Taylor* SC 70/07 was referred to.

It is common cause that the property in question was acquired during the subsistence of the marriage between the Applicant and the first Respondent. It was not disputed that summons for a decree of divorce and ancillary relief were issued by the first Respondent. The Matrimonial Causes Act [*Chapter 5:13*] provides for the division, apportionment and distribution of assets of the spouses. An appropriate court is empowered to make an order including that any asset may be transferred from one spouse to the other. I am persuaded that it is appropriate that the fate of this property be determined in the divorce action. There is no basis for granting the present application.

The following order is appropriate.

The application be and is hereby dismissed with costs.

MAXWELL J.....

Ushewokunze Law Chambers, Applicant's Legal Practitioners
Mhishi Nkomo Legal Practice, first Respondent's Legal Practitioners